



Notification Waiver Determination

RCT Solutions GmbH - Wärtsilä Energy Storage Finland Oy

Acquisition	RCT Solutions GmbH (RCT Solutions) applied for a notification waiver in respect of its proposed acquisition of 50% of the share capital in Wärtsilä Energy Storage Finland Oy (Wärtsilä Energy), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	27 August 2026

Parties to the Acquisition	The acquirer, RCT Solutions, is an independent engineering house based in Konstanz, Germany, dedicated to consulting and engineering services for clients in the photovoltaic and battery manufacturing space. It offers end-to-end consulting, engineering, and ramp-up services for photovoltaic cells and modules as well as battery manufacturing plants. RCT Solutions has no Australian operations. The target, Wärtsilä Energy, is headquartered in Helsinki, Finland. It is the energy storage business of the Finnish technology group Wärtsilä and acts as a system integrator, combining battery cells from leading manufacturers with its own energy management software, power conversion technology, controls, and lifecycle services to deliver complete, utility-scale battery energy storage solutions for modern power systems. Wärtsilä Energy supplies equipment and services in Australia through its wholly owned subsidiary, Wärtsilä Energy Storage Australia Pty Ltd.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. There is no horizontal or vertical overlap between RCT Solutions and Wärtsilä Energy in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.

	The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**